



पश्चिम बंगाल पश्चिम बंगाल WEST BENGAL

AC 959515

THIS DEED OF RECONSTITUTED DEED OF PARTNERSHIP is made on the 1st day of April, 2020 (Two Thousand Twenty) **AMONGST (1) KAMAL KUMAR DAW** son of Late Kush Chandra Daw by Nationality Indian by faith Hindu by occupation Business residing at 24, Bondel Road, P.S. Karaya, Kolkata -700 019 being the party of the **FIRST PART** (which expression shall unless excluded by or repugnant to the context be deemed to mean and include all his heirs, executors, administrators and assigns) **AND (2) SMT. ARATI DAW** wife of Sri Kamal Kumar Daw, by Nationality Indian by faith Hindu by occupation Business residing at

For SHYAMA TRADING CO.

Partner

For SHYAMA TRADING CO.

Partner

For SHYAMA TRADING CO.

Partner

1 8 MAR 2020

Serial No. 2862 Date.....
Name Shyama Trading Co.
Address 56/1-B 56/2/1, 2nd floor, Lila Roy
Sareni Hotel-Tg.
Value Rs. 100/-

BIDYUT KR. SAHA
Licence Stamp Vendor
Alipore Judges' Court 24 Pgs. (S)

Licence Stamp Vendor Signature

2862 - 100/-
2863 - 50/-
150/-



पश्चिम बंगाल पश्चिम बंगाल WEST BENGAL

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24, Bonde! Road, P.S. Karaya, Kolkata -700 019, being the party of the **SECOND PART** (which expression shall unless excluded by or repugnant to the context mean and include all her heirs, executors, administrators, and assigns) **AND (3) PRASENJIT DAW** son of Sri Kamal Kumar Daw by Nationality Indian by faith Hindu by occupation Business residing at 56/1D, Garcha Road, P.S. Gariahat, Kolkata -700 019, being the party of the **THIRD PART** (which expression shall unless excluded by or repugnant to the context mean and include all his heirs, executors, administrators and assigns).

For SHYAMA TRADING CO.

Kamal Kumar Daw
Partner

For SHYAMA TRADING CO.

Ananti Daw
Partner

For SHYAMA TRADING CO.

Prasenjit Daw
Partner

18 MAR 2020

Serial No. ... 2863 ... Date
Name. Shyama Trading Co
Address ... 56/1, B 56/2/1, ... Hila Roy
..... Sarani ... KOL-19
Value Rs. 50/- P.....

BIDYUT KR. SAHA

Licence Stamp Vendor

Alipore Judges' Court 24 Pgs. (S)

Licence Stamp Vendor Signature

100 + 50 = 150/-

WHEREAS the parties of the FIRST PART and SECOND PART were carrying on business as Partners in pursuance of Reconstituted and Supplementary deeds of partnership dated 23.03.89 and 13.04.92 in the name and style of "SHYAMA TRADING CO." having its office at 56/1 and 56/2/1, Gariahat Road Calcutta -700 019 on and from 25.04.79.

AND WHEREAS the said parties of the FIRST PART and SECOND PART facing problems to run the affairs of the business for want of proper supervision and management of the said business and also with a view to run the business viably and/or to diversify the said business in the same line, desirous to admit the party of the THIRD PART as partner into the said business and thereby by the Reconstitution of Partnership dated 18th April, 2000 the First Part and Second Part took the Third Part as partner with them to run the said partnership business jointly.

AND WHEREAS by another supplementary Deed of Partnership dated 1st April, 2002 the parties hereto unilaterally decided and rearranged their shares and interest in the partnership and agreed to reconstitute the terms thereto whereupon the clause 3 and 4 of the partnership Deed dated 18.04.2000 stood deleted by inserting and substituting new clauses Nos. 3 and 4 mentioned and embodied in the said Supplementary Deed as well as inserted hereinbelow .

AND WHEREAS the terms and conditions of all previous Deed of Partnership and reconstitution/supplementary thereof dated 23.3.1989, 13.04.1992, 18.04.2000 and 01.04.2002 are being duly reconstituted under the terms of this Reconstitution of Partnership Deed and all other

For SHYAMA TRADING CO.

Ramesh Kumar
Partner

For SHYAMA TRADING CO.

Ananta Das
Partner

For SHYAMA TRADING CO.

Pradip
Partner

terms of all previous Deeds will supersede by the terms herein save and except the similar and unchanged terms .

AND WHEREAS the parties of all the parts to avoid future misunderstanding intended to put in writing the terms and conditions among themselves and become desirous to execute these presents.

NOW THEREFORE THIS DEED WITNESSETH that the parties hereunto covenant as under :

1. This deed shall be taken effect from 01.04.2020 and the parties hereunto shall become partners on and from the said date in the said business in the name and style of SHYAMA TRADING CO, and the parties shall remain partners for unlimited period of time unless determined an according to the terms and conditions of this deed or otherwise. Further no change in constitution of partnership shall be made without formal approval of M/s. Bharat Petroleum Corporation Limited.
2. That the principal place of business shall be at 56/1, and 56/2/1, Gariahat Road, Kolkata -700 019 and cannot be extended to other place without formal approval in writing from the Bharat Petroleum Corporation Limited.
3. That the Partners are first entitled to earn/ receive simple @ 12% *interest* per annum on the amount of Capital as would stand at credit of the beginning of each year of each individual partner.

For SHYAMA TRADING CO.

Kamal Kumar
Partner

For SHYAMA TRADING CO.

Amiti Das
Partner

For SHYAMA TRADING CO.

Pratibha
Partner

4. That the partners, who are effectually devoting their time in the working of the business of the partnership, are entitled to receive earn salary per month, other than interest on capital and the share of profits and loss of the business. It is put in writing that the aggregate amount of salary payable to the partners should never exceed the amount permissible under the Income Tax Act 1961. The salary of Individual partner may be reviewed on exigencies, in terms of unanimous decision of all the partners. However at present. It has been decided by the partners that the salary of the above noted partners with effect from 1st day of April 2020 for devoting their time in the business will be as under and the same will continue till further reviewed :

I. KAMAL KUMAR DAW	Rs.6,00,000/- per annum
II. PRASENJIT DAW	Rs.6,30,000/- per annum
III.SMT. ARATI DAW	Rs.3,40,000/- per annum

5 That the Profit and or Loss of the business, as would stand after deduction of interest on Capital to partners at first and then permissible salary to the partners as provided in clause 4 supra, shall belong to and be borne by the partners as

1. KAMAL KUMAR DAW	45%
2. SMT. ARATI DAW	10%
3. PRASENJIT DAW	45%

6. That the partners shall attend diligently to the business of the partnership and carry on the same for the maximum benefit of the partners, Neither of them shall be directly or indirectly engage or

For SHYAMA TRADING CO.

For SHYAMA TRADING CO.

For SHYAMA TRADING CO.

Kamal Kumar DAW
Partner

Arati DAW
Partner

Prasenjit DAW
Partner

interested in any other trade or business except with the mutual consent or those an now being already carried on in their individual capacity or in partnership elsewhere.

7. That the Capital Account of the reconstituted partnership business will be contributed / credited in the following fashion :

The Capital account of the parties of the FIRST PART and SECOND PART will be of such sum which stands at credit on the closing of 31st day of March, 2020 on the basis of Balance Sheet and profit & loss account made up to that date of the business which was carried on by the parties. Subsequently For further requirement of capital, all the partners shall without the Capital in proportion they all decide interse from time to time.

8. That all assets, rights, debts, belongings, privileges, concessions, other entitlements acquired, craved, accrued, arising and / or anywise so had or caused to be so had under the name and style of "SHYAMA TRADING CO. since the date of establishment of the business which was carried on in partnership by the parties of the FIRST PART and SECOND PART shall be the property of the reconstituted partnership business as if those have such been succeeded by the reconstituted partnership firm.

9. That the partners shall punctually pay and discharge their personal liabilities individually and shall keep the firm effectually indemnified against the same.

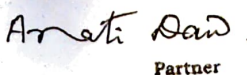
10. No partner shall without the consent in writing of the others, release or compound any debts owing to the firm or diminish security to

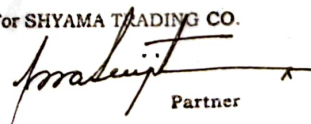
For SHYAMA TRADING CO.

For SHYAMA TRADING CO.

For SHYAMA TRADING CO.


Partner


Partner


Partner

the firm without receiving in full the amount thereof or lend any money or deliver goods, belonging to or give credit on behalf of the firm except in the usual course or business or make any assignment either absolute or by way of mortgage of declaration of trust of his/her share or interest in the firm do or knowingly permit to be done anything whereby the property of the firm may be liable of being seized, attached or taken in execution.

11. That all outgoing expenses of the firm shall be paid out of the fund and profits of the business and in case of deficiency by the partners in the proportion in which they are entitled to share the profits and losses of the partnership.

12. That the partners shall keep proper books of accounts which shall be kept at the place of business for the time being of the partnership and each partner shall have access to and power to make copies of the same.

13. That the books of accounts of the partnership business shall be closed on 31st March, every year. Valuation of all assets and liabilities and profit & loss account of the business shall be made on the closing of each accounting year and the books shall accordingly be closed. The Annual account of the partnership business may be audited by qualified auditor/s before it is finally binding upon the partners.

14. That the firm may open Bank A/c. (s) with one or more Banks approved by the partners and such bank accounts shall be operated by the Partner/partners for and on behalf of the firm.

For SHYAMA TRADING CO.

Kamesh Kumar
Partner

For SHYAMA TRADING CO.

Aneta San
Partner

For SHYAMA TRADING CO.

Pratibha
Partner

15. No power of attorney will be given to any other persons by the signatories to the DPSL agreement for operating the retail outlet business without prior approval of M/s. Bharat Petroleum Corporation Limited in writing.

16. All acts, things and matters done, executed and/ or signed on or before this deed has been delivered and signed shall be taken as if so done, executed and/or signed by virtue of these presents.

17. No change in the partnership shall be made without formal approval from BPCL.

18. No Change in the Constitution of the partnership deed made either by inducting a new partner or allowing to retire will be made without prior written approval of the Bharat Petroleum Corporation Limited.

If any of the partner willing to retire from the partnership, he or she will have to take prior permission of the Bharat Petroleum Corporation Limited.

19. In the event of the death of any partner, the partnership deed will come to an end and the same can be reconstituted only with the formal written approval from M/s. Bharat Petroleum Corporation Limited. However the surviving partners can with the approval of M/s. Bharat Petroleum Corporation Limited in writing carry on the business of the said firm purely on temporary basis on the terms a conditions to be determined by the Bharat Petroleum Corporation Limited at their sole discretion.

For SHYAMA TRADING CO.

Kamlesh Kumar
Partner

For SHYAMA TRADING CO.

Anish Datta
Partner

For SHYAMA TRADING CO.

Pradeep
Partner

20. That the firm shall upon dissolution, be wound up and the assets and liabilities shall be distributed in accordance with the provisions of the partnership law (s) for the time being in force.

21. In case of any dispute arising among the partners or their legal representatives, the same shall be referred for decision to a Sole Arbitrator whose decision shall be final and conclusive and will be binding on all the partners and/or the legal representative(s). The provision of Arbitration and Conciliation Act, 1996 as amended upto date shall be applicable.

IN WITNESS WHEREOF the parties hereto have hereunto set and subscribed their respective hands and seals in this deed of partnership on the day, month and year first above written.

SIGNED SEALED AND DELIVERED

AT KOLKATA IN THE PRESENCE OF :

WITNESSES :

1. *Bardhaman Saha*
72A, *Bisalmipur Road*,
Tadulpur, *Kolkata-700032*.

2. *Sujat Kumar Gohi*
(*Sujat Gohi*)
VIII - *Sandhipur*
P.S. - *Joyrajpur*
Dist - *Howrah*

For SHYAMA TRADING CO.

Kamal Kumar Daw
Partner

(KAMAL KUMAR DAW)

For SHYAMA TRADING CO.

Arati Das
Partner

(ARATI DAW)

For SHYAMA TRADING CO.

Prasenjit Daw
Partner

(PRASENJIT DAW)